getliving

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LICENCE AGREEMENT FOR RENTING A PARKING SPACE

DATE OF THIS AGREEMENT	**18 August 2025**
THE PARTIES	
THE OWNER	**GET LIVING (MAIDENHEAD) D LIMITED .** 1 East Park Walk London E20 1JL
THE LICENSEE	**Tomasz Jan Szymaniec**
THE PARKING SPACE	The parking space numbered **Tower D - Space 064** **Maidenhead**
THE CAR PARK	**SL6 1NS** within the Car Park or such other parking space as may be allotted to the Licensee pursuant to clause 1.2.3. The Car Park at One Maidenhead serving Carter House, Lofting House, Hornby House, Francis House.
MOTOR VEHICLE	One motorbike, car or van which either belongs to the Licensee or which the Licensee is authorised to use.
COMMERCIAL VEHICLE	One motorbike, car or van which either belongs to the Licensee or which the Licensee is authorised to use and of which the use is primarily for commercial purposes (as opposed to private use).
THE TERM	The period from and including the Date of this Agreement being **18 August 2025** (the "**Start Date**") until the earlier of: **(a)** the date on which this licence is determined in accordance with Clause 3.2; or **(b)** The Licence End Date of **17 August 2027.**
LICENCE FEE	£ means: £**150.00** **One Hundred and Fifty Pounds and Zero Pence** per calendar month, subject to an increase on each anniversary of this licence as set out in clause 5; or such other amount as the Owner in its absolute discretion may from time to time determine on giving one month's notice.
Payable	The first payment of Licence Fee is payable in advance and due on **18 August 2025.** Thereafter, the Licence Fee is payable in advance and due on the 1st of every calendar month for the duration of the Term of this licence.

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	Because the fixed term of the licence commences part way through a month, on or before the licence Start Date, you must pay a proportion of the Licence Fee calculated on a daily basis for the period from and including the Start Date to and including the last day of that month. Because the fixed term of the licence ends part way through a month, on the first day of the month in which the fixed term is due to end, you must pay an apportioned Licence Fee to cover the period up to the end of the fixed term. Get Living will tell you how much you have to pay. Aside from these two pro-rata Licence Fee payments, all Licence Fee payments must be made in full and on the first of each month during the fixed term.
Payment Method	By direct debit
Permitted Use	The parking of a motor vehicle for private purposes or a Commercial Vehicle in accordance with clause 2.15.
Management Company	Get Living London Limited (company number 07793925), or such other individual or company as the Owner may from time to time appoint to manage or assist with the management of the car park

The Owner licences and permits the Licensee to occupy and enjoy the parking space detailed above for the period and at the Licence Fee detailed above. The terms and obligations of both parties are detailed below. A reference to **writing** or **written** excludes fax.

These terms will be legally binding once the Licence has been signed and dated.

AGREED TERMS

1 LICENCE TO PARK

1.1 Subject to clause 2 and clause 3 and in consideration of the Licensee being a resident at Maidenhead One, the Owner permits the Licensee to use the Parking Space for the Permitted Use for the Licence Period in common with the Owner and all others authorised by the Owner (so far as is not inconsistent with the Licensee's use of the Parking Space for the Permitted Use) together with access over the Car Park to and from the Parking Space.

1.2 The Licensee acknowledges that:

1.2.1 the Licensee shall use the Parking Space as a licensee and that no relationship of landlord and tenant is created between the Owner and the Licensee by this Licence.

1.2.2 the Owner retains control, possession and management of the Parking Space and the Licensee has no right to exclude the Owner from the Parking Space; and

1.2.3 without prejudice to its rights under clause 3, the Owner shall be entitled at any time on giving not less than 7 days' notice to require the Licensee to transfer to an alternative space elsewhere within the Car Park and the Licensee shall comply with such requirement.

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2 TERMS AND OBLIGATIONS

The Licensee agrees and undertakes as follows:

1 To pay the Licence Fee at the times and in the manner agreed.

2.2 This Licence is personal to the Licensee who shall not assign sublet or in any way part with or share use of the Parking Space and the rights given in clause 1.1 may only be exercised by the Licensee.

2.3 The Licensee acknowledges and accepts that the Car Park shall be monitored by way of automatic number plate recognition (ANPR).

2.4 The Licensee shall provide (and keep updated) its licence plate details for the Motor Vehicle being parked on the Parking Space to the Management Company for ANPR purposes and to ensure entry and exit into the Car Park via the barriers.

2.5 The Licensee shall provide the Management Company with proof of ownership when requested by the Managing Company or the Owners managing agent during the term of this Licence.

2.6 Upon termination of this Licence the Licensee will deliver up the Parking Space to the Owner in a good state of repair and cleaned and swept and will return the remote access fob(s) and parking permit (if any).

2.7 Where a parking permit has been issued, that permit must be prominently displayed on the dashboard of the Motor Vehicle parked on the Parking Space so that it is clearly visible from the exterior of the Motor Vehicle. The Licensee must return the Parking Permit to the office of the Management Company upon termination of this Licence.

2.8 The Parking Space must only be used for the purpose of parking one Motor Vehicle. The Motor Vehicle must be no larger than the Parking Space indicated by the demarcation lines and the height of the Motor Vehicle must be no greater than 2.0 metres. In addition, the Motor Vehicle must not weigh over 3 tonnes when empty.

2.9 The Licensee shall keep the Parking Space in a good state of repair and clean and tidy at all times.

2.10 The Licensee shall not place any signs or advertisement upon the Parking Space nor hold any sale by auction in the Parking Space or any other part of the Car Park.

2.11 The Licensee shall not make any alterations to the Parking Space. The Licensee shall not paint or put any marking lines or otherwise interfere with or alter the demarcation lines nor damage or make any alterations to the surface of the Parking Space.

2.12 The Licensee shall not wash any motor vehicle on any Parking Space nor carry out any maintenance, engine tuning or repairs (save in an emergency in the event of a breakdown) in the car parking spaces or in any other part of the Car Park and/or any part of the plot common parts and/or the neighbourhood common parts.

2.13 The Licensee shall not allow any petrol or inflammable liquid or material to be kept in the Parking Space nor smoke or use any naked flame within the Car Park.

2.14 The Licensee shall not:

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2.14.1 Keep any animal in the Car Park; or

2.14.2 use the Parking Space for the storage of other articles; or

2.14.3 for the purpose of any trade or business,

although it is allowable to a park a Commercial Vehicle in the Parking Space but not to operate a business from that vehicle while parked in the Parking Space.

2.15 The Licensee shall at all times comply with all signs in the Car Park relating to traffic control measures including direction and speed signs and give way or stop markings and shall not exceed any speed limit imposed at any time on the Car Park, or in its vicinity, nor drive recklessly or in such a way to endanger the safety of pedestrians or other vehicles.

2.16 The Licensee shall be responsible for any accidents or damage of any kind caused as a result of its actions or the actions of any person authorised by the Licensee to drive in the Car Park.

2.17 The Licensee shall not cause nuisance or annoyance to the Owner or any other person using the Car Park.

2.18 The Licensee shall not do anything nor allow anything to be done which might prejudice or invalidate the Owner's insurance policy nor increase the premium payable.

2.19 The Licensee will not do any damage to the land and buildings situated at the address of the Car Park being the entirety of the land and buildings in the freehold ownership of the Owner.

2.20 The Licensee shall not cause obstruction to the access to the Owner's other parking spaces or land. In the case of an emergency the Licensee shall leave the Car Park immediately on foot via the main or emergency escape exits.

2.21 The Licensee shall indemnify the Owner against any claim by a third party arising from failure to comply with these terms and obligations or from negligence by the Licensee or any person that the Licensee invites or permits access to the Car Park.

2.22 The Licensee shall abide by and hereby agrees to be bound by the terms and conditions that may apply to the Car Park (even where those terms and conditions may be more onerous than the provisions of this Licence) in the event that the Owner employs a professional car park management company to enforce the terms of this Licence or such other terms as might reasonably be required for the efficient management of the Car Park, provided any additional obligation and terms and conditions which may be enforced are clearly displayed within the Car Park.

3 TERMINATION

3.1 The agreement will finish on the Licence End Date or as described in conditions below.

3.2 The Owner or the Licensee may end the agreement 3 months after the Start Date by giving to the other one month's written notice (such notice not to take effect within 3 months of the Start Date).

3.3 This agreement shall end on expiry of not less than 7 days' notice to terminate given by the Owner to the Licensee where the Owner specifies (at the Owner's entire discretion) that the Parking Space is required to provide parking facilities for a person that is eligible for a Blue Badge (disabled parking permit). The Owner shall use reasonable endeavours to allot an alternative Parking Space in accordance with clause 1.2.3 as soon as reasonably practicable.

3.4 If the Licence Fee is in arrears for 14 days after becoming due, the Owner can terminate the agreement by giving the Licensee immediate notice in writing.

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3.5 If the Licensee is in breach of any term of this agreement and does not put the matter right within 14 days of the Owner telling them about it, the Owner may terminate the agreement by giving them immediate notice in writing.

3.6 At the termination of this Licence the Licensee shall pay in full and immediately to the Owner any arrears of Licence Fee owing at the date of the notice and return any access fobs where appropriate. In the event that a fob is lost or damaged or the Licensee fails to return all fobs at the end of the Licence, the Licensee shall pay to the Management Company any reasonable costs associated with producing a replacement remote access fob.

3.7 If the Owner has served notice to determine this Licence and the Licensee does not immediately vacate the said parking space and pay all arrears of Licence Fee owing to the Owner and the Owner has to commence legal proceedings in order to obtain vacant possession of the said parking space then the Licensee shall pay to the Owner in addition to all arrears of Licence Fee owing to the Owner, all costs of any description incurred by the Owner in taking proceedings of any nature whatsoever against the Licensee.

3.8 Termination of this licence shall not affect the rights of either party in connection with any breach of any obligation under this licence which existed at or before the date of termination.

4 LICENCE FEE INCREASE

a) The Licence Fee will increase every year with effect on the Licence Fee Increase Date (defined at clause 4(b) below).

b) The Licence Fee Increase Date will be:
   i. each anniversary of the licence start date if the anniversary is a Licence Fee due date; <u>or</u>
   ii. where the anniversary is not a Licence Fee due date, the next Licence Fee due date following each anniversary.

c) The Licence Fee will increase by the same percentage as the annual Consumer Prices Index (CPI) percentage, including any fraction of a percent, subject to a minimum increase of 3% and a maximum of 9%.

d) The CPI percentage is published each month by the Office for National Statistics and is a measure of how the price of things has changed since the same time in the previous year. The CPI percentage applicable for any rent increase will be the most recent CPI percentage published, as long as it was published at least ten working days before the rent increase date. Where the CPI percentage was most recently published less than ten working days before the rent increase date, the previous month's CPI percentage will apply, subject to the minimum and maximum increases referred to above.

***Example 1**. The CPI percentage most recently published is 7.3% - the Licence Fee will increase by **7.3%** compared to the existing rent.*

***Example 2**. The CPI percentage most recently published is 3% - the Licence Fee will increase by **3%** compared to the existing rent as this is the minimum annual rent increase that we have agreed.*

***Example 3**. The CPI percentage most recently published is 15% - the Licence Fee will increase by **9%** compared to the existing rent as this is the maximum annual rent increase that we have agreed.*

e) If the CPI is no longer published, a successor or substitute index shall be designated by the Landlord (acting reasonably).

f) On the expiry of this fixed term licence, the Licence Fee for any subsequent renewal licence granted shall be as the Owner in its absolute discretion may from time to time determine.

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5 GENERAL AGREEMENTS BETWEEN THE OWNER AND THE LICENSEE

5.1 The Owner shall only be responsible for loss sustained by the Licensee or damage caused to the Licensee's vehicle if such loss is caused by the negligence of the Owner or its agents or to the extent that liability on the part of the Owner or its agents is accepted by the Owner's or its agents' insurer.

5.2 You agree that any notices or other documentation that we serve you under or in connection with this License may be sent to you by email using any email address(es) used by you in relation to the license. A notice by email will be deemed served on the same day if sent by 4:00pm on a business day and if not will be deemed served on the following business day.

5.3 If you wish to serve notice you should do so by an email sent to the assigned Relationship Management Team which you will be provided with. Your notice will be deemed served on the same day if sent by 4:00pom on a business day and if not will be deemed served on the following business day.

5.4 Fax is not an accepted means of servicing notices or communicating.

6 DATA PROTECTION

6.1 Get Living (Maidenhead) A Limited and Get Living London Limited ("Get Living") may each hold your name, details, forwarding address and other personal data ("Personal Data"). This clause explains Personal Data is held and processed and describes the rights you have in relation to our processing of Personal Data. It provides you with contact details if you have any questions and is provided for purposes of the General Data Protection Regulation (EU 2016/679) ("GDPR").

6.2 Personal Data that you disclose to Get Living (Maidenhead) A Limited may be passed to Get Living to process in order for Get Living to support Get Living (Maidenhead) A Limited in carrying out its obligations under this agreement. Get Living (Maidenhead) A Limited and Get Living will process your Personal Data the purposes described in this clause. "We" and "us" refer to Get Living (Maidenhead) A Limited or Get Living, as relevant.

6.3 We will process Personal Data as necessary to perform this agreement, to comply with our legal obligations, conduct anti-money laundering, sanctions, and credit checks, assist in the prevention of crimes and protecting the vital interests of you and visitors to Maidenhead One as well as for other purposes notified to you. At all times we will process Personal Data in accordance with the data protection policy available at http://www.getlivinglondon.com/privacy-policy ("Policy"). Please read this policy to see how we will protect and may use your Personal Data.

6.4 Where necessary to perform this agreement, permitted by law or necessary for the legitimate interests of either of us or the recipient we may provide your Personal Data to:

- other companies in the Get Living group.
- third parties including government authorities, a professional car park management company (if appointed), credit agencies, reference agencies, utility providers, local authorities, online tenancy processing agents, the tenancy deposit protection scheme provider, funding bodies, customer satisfaction survey companies and debt collection agencies, providers of our IT systems and other facilities and management providers; and
- a purchaser of [the building] should such purchaser become responsible to you for the performance of the agreement. Such purchaser would become the data controller in our place and will need your personal data for the legitimate interests set out in this clause. We will notify you should this occur.

6.5 We will take all reasonable efforts to ensure any such recipient of Personal Data applies the Policy.

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6.6 Where you provide us with Personal Data of a third party (such as emergency contacts or a guarantor) you must show that person this clause and obtain their consent to you disclosing their Personal Data to us in accordance with these terms.

6.7 You must provide us with details of any inaccuracies in or changes to your data, as soon as possible so that we can update our records.

6.8 We will only transfer Personal Data outside the European Economic Area ("EEA") in accordance with the Policy and law.

6.9 We will use your Personal Data as long as is necessary to implement, administer and manage the agreement, or as required to comply with legal or regulatory obligations, including under tax and financial compliance laws. When we no longer need your Personal Data, which will generally be seven years after you leave the premises, we will remove it from our systems. If we keep your Personal Data longer, it will be to satisfy legal or regulatory obligations.

6.10 You may have rights in respect of your Personal Data under the GDPR or other laws, including a right of access, to object to certain processing and of data portability and rights to have your personal data rectified or deleted or its processing restricted. You are also entitled to lodge a complaint with a supervisory authority, which is generally the supervisory authority where you work and/or are resident.

6.11 In some cases, we request your specific consent to the processing of Personal Data. Where you give consent, you are entitled to revoke such consent at any time in the future. Such revocation will not affect our previous processing of such Personal Data and we may also continue processing the personal data if we have another lawful basis for doing so under the GDPR, including for any of our legitimate interests, as described in this clause. We will inform you if this is the case.

6.12 You may exercise the above-mentioned rights by contacting us at datamanager@getliving.com

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SIGNATURES

Important - by signing this agreement, you agree that you have read and accept the full conditions detailed on this licence agreement.

SIGNED by the Owner

Signature: Ashley Cox Date: 09/08/2025

Name: Ashley Cox

SIGNED by the Licensee

Signature: Date: 09/08/2025

Name: Tomasz Jan Szymaniec

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GET IN TOUCH

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